

PETITION - NEVADA TRAFFICKING-VICTIM VACATUR AND SEALING PETITION UNDER NRS 179.247

IN THE COURT
(the Nevada court in which the judgment was entered)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if the court assigns one at filing:

.....

NEVADA TRAFFICKING-VICTIM VACATUR AND SEALING PETITION UNDER NRS 179.247

A. WHAT THE COMMITTED RECORD ESTABLISHES ABOUT THIS ROUTE

This petition is brought on the route the committed route contract records as "Trafficking-victim vacatur and sealing", under Nev. Rev. Stat. Sec. 179.247.

The compiled Nevada profile records the substance of this route as follows. Nevada allows certain people to petition to vacate judgment and seal records if the conviction was for prostitution/solicitation-related conduct, certain nonviolent Nevada crimes, or loitering for prostitution/solicitation, and the person's participation resulted from being a victim of trafficking or involuntary servitude. If granted, the court vacates the judgment, dismisses the accusatory pleading, and seals related records.
("https://law.justia.com/codes/nevada/chapter-179/statute-179-247/")

The committed contract records the timing of this route as: no fixed elapsed waiting period; the petition follows satisfaction of the statutory victimization nexus and the due-diligence and safety requirements.

The committed contract records these conditions on the route: Exact Nevada route; Valid deferred-judgment order or covered trafficking-caused offense with required nexus and diligence facts.

B. THE PETITIONER

Name: Maria-Alejandra O'Shaughnessy-Whitfield
Date of birth: 1968-12-31

C. THE FACTS OF THIS MATTER, WHICH THE PETITIONER SUPPLIES FROM THE RECORD

Each item below is printed in the words the committed record uses for it. Fill each one from the record itself, never from memory.

[C1 - deferred-judgment term/order] Deferred-judgment term/order?

.....

.....

[C2 - completion/dismissal] Completion/dismissal?

.....
.....

[C3 - exact offense] Exact offense?

.....
.....

[C4 - trafficking nexus] Trafficking nexus?

.....
.....

[C5 - cessation/services/safety facts] Cessation/services/safety facts?

.....
.....

[C6 - prosecutor notice] Prosecutor notice?

.....
.....

[C7 - other counts] Other counts?

.....
.....

D. THE REQUEST

The petitioner asks the Court to vacate the judgment, dismiss the accusatory pleading, and seal the related records under NRS 179.247.

DATE SIGNATURE OF PETITIONER

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairsville
39501-2214

TELEPHONE: (228) 555-0199 ext. 4417

EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Route: obligation:runtime-only:NV:trafficking-victim-vacatur-and-sealing-under-nrs-179-247

FILING INSTRUCTIONS - NEVADA TRAFFICKING-VICTIM VACATUR AND SEALING PETITION UNDER NRS 179.247

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

FILING INSTRUCTIONS - NEVADA TRAFFICKING-VICTIM VACATUR AND SEALING PETITION UNDER NRS 179.247

WHAT THIS ROUTE IS, AND WHO RUNS IT

The committed route contract records this route as "Trafficking-victim vacatur and sealing", under Nev. Rev. Stat. Sec. 179.247, with outcome mode "participant_packet".

The committed contract names the packet components for this route as: Petition to vacate and seal; Victimization nexus evidence; Due-diligence and safety showing. This packet composes the filing pages; anything on that list that is a RECORD rather than a pleading is a document you obtain and file with the petition.

Who runs it: The participant petitions and the court decides - but the compiled Nevada profile records something before that, and it is the first thing this packet says: "Nevada has a special relief pathway for some trafficking survivors. That should be routed to legal aid or an attorney because it can involve vacating the conviction, not just sealing it."

WHAT YOU DO

- Read the stop conditions before anything else. The compiled record's own instruction about this route is the first one.
- If you go on, obtain the victimization nexus evidence and the due-diligence and safety showing; the committed contract names both as components of this packet.
- Fill only the labelled items, from the record. Nothing on any page asks for an account of what happened to you.

WHAT YOU DO NOT DO

- Do not write an account of what was done to you on any page of this packet. Nothing here asks for one, and the compiled record's own instruction is that this route goes to legal aid or an attorney.
- Do not file anything before you have thought about what becomes public when you do. A court file is a public record unless something makes it otherwise, and nothing in this packet makes it otherwise.
- Do not take the ordinary NRS 179.245 sealing workflow as this route's workflow. The committed contract records that this route has its own nexus and safety conditions and 'never inherits the deferred-judgment rule'.

WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

No committed record this packet binds states a filing fee, or a fee waiver, for this route. The office that

answers both is the clerk's office of the Nevada court in which the judgment was entered. Ask before you go, because a filing you cannot pay for is a filing you cannot make. One thing this packet deliberately does NOT tell you: a fee waiver for victims of sex trafficking or involuntary servitude is recorded elsewhere in this repository under NRS 179.245(9), which is a different section from the NRS 179.247 route this packet is for. Whether it reaches a Sec. 179.247 petition is not established by any record this packet binds, and it is raised for counsel rather than published here as your answer. Ask the clerk's office about it by name.

WHO MUST BE SERVED, AND WHO IS NOTIFIED

No committed record this packet binds states who must be served on this route, or how. The office that answers it is the clerk's office of the Nevada court in which the judgment was entered. What the committed contract does record is a PROSECUTOR RESPONSE PERIOD, and records it precisely: it is post-filing procedure and not a filing clock.

WHEN TO STOP AND GET HELP INSTEAD

- ****this is the first thing the committed record says about this route:**** Nevada has a special relief pathway for some trafficking survivors. That should be routed to legal aid or an attorney because it can involve vacating the conviction, not just sealing it.
- the facts that establish the connection are yours to tell and yours alone. No page in this packet asks for an account of what was done to you, and nothing here should be written out for anyone who has not been engaged to act for you;
- your own safety is in question, now or once a filing becomes a public court record;
- there are other counts on the same case, or other cases - every committed contract in this group records other counts as a fact the route must collect;
- any immigration question is involved.

Route: obligation:runtime-only:NV:trafficking-victim-vacatur-and-sealing-under-nrs-179-247